MASTER SERVICES AGREEMENT & DATA PROCESSING ADDENDUM (MSA & DPA)

> **THIS AGREEMENT** is made between **SHEFFY TECHNOLOGIES LIMITED** (RC 1928471), a corporation incorporated under the laws of the Federal Republic of Nigeria with its principal offices in Lagos State ("CheckPass" or the "Service Provider"), and the **SUBSCRIBING CLIENT** ("The Estate HOA", "CDA", "Facility Manager", or "Subscriber"), collectively referred to as the "Parties".

PART 1 · COMMERCIAL TERMS & CLOUD SLA

1. Scope of Cloud Services: CheckPass grants the Subscriber a non-exclusive, multi-user license to access and utilize the CheckPass cloud software suite, comprising: (a) 4-Second QR Gate Pass Verification for security guards; (b) Multi-Channel Pass Dispatch (Instant WhatsApp, SMS, and Email delivery); (c) Automated Estate Dues & Utility Billing with 1-Click Verification; (d) Anti-Theft Move-Out Clearance Manifests; (e) Verified Artisan & Domestic Staff Directory; and (f) Emergency SOS 1-Tap Security Gate Broadcast System.

2. Service Level Agreement (SLA) & Uptime Guarantee: CheckPass guarantees **99.8% monthly cloud platform availability**, excluding scheduled off-peak maintenance. To protect perimeter security during cellular or network outages, the CheckPass Guard Terminal software incorporates local offline cryptographic token caching, enabling security guards to validate pre-issued QR codes and access phrases without an active internet connection.

3. Zero Hardware Lock-In & BYOD Compatibility: CheckPass operates on standard modern consumer and commercial smartphones, tablets, and desktop web browsers (Android, iOS, Chrome, Safari). The Subscriber is never compelled to procure proprietary turnstile hardware, specialized handheld readers, or proprietary computers from CheckPass.

4. Direct Dues Settlement & Zero Fund Intermediation: 100% of all resident estate dues, security levies, service charges, and utility payments initiated through the platform are deposited directly into the designated commercial bank account of the Subscribing Estate or Community Association via Central Bank of Nigeria (CBN) licensed payment switches (PCI-DSS Level 1 certified). CheckPass acts solely as a technical gateway and never holds, commingles, or custodians resident funds.

5. Term, 30-Day Exit & Data Portability: This Agreement commences upon electronic acceptance during account creation and continues on a monthly or annual subscription cycle. The Subscriber may terminate this Agreement at any time by giving thirty (30) days written notice without incurring exit penalties or lock-in fees. Upon termination, CheckPass shall deliver an encrypted, structured export (CSV / JSON format) of all resident registers, pass ledgers, and financial records within fourteen (14) calendar days.

PART 2 · NDPA 2023 & NDPC GAID 2025 DATA PROCESSING ADDENDUM

6. Statutory Roles under Nigerian Privacy Law: Pursuant to Section 24 of the Nigeria Data Protection Act (NDPA) 2023 and the Nigeria Data Protection Commission (NDPC) General Application and Implementation Directive (GAID) 2025 Directive 15, the Parties agree that: (a) The Subscribing Client acts as the statutory **Data Controller**, retaining

ownership and control over resident rosters, access authorizations, and perimeter rules; (b) CheckPass acts as the statutory **Data Processor**, processing personal data strictly according to documented instructions from the Data Controller.

7. Security Measures & Technical Safeguards: CheckPass shall implement and maintain enterprise-grade administrative, physical, and technical safeguards, including: (a) AES-256 bit encryption at rest for database records and backup archives; (b) TLS 1.3 encryption in transit for all network endpoints; (c) Role-Based Access Control (RBAC) isolating guard, manager, and resident privileges; and (d) Immutable, tamper-evident audit logs of all access pass validations and administrative changes.

8. Data Retention & Automatic Anonymization: Routine visitor movement records (visitor name, phone number, vehicle plate, and host unit) shall be retained for security auditing for a default cycle of one hundred and eighty (180) days, after which telemetry data is automatically anonymized or purged, except where extended retention is requested in writing by the Data Controller for active criminal or insurance investigations.

9. Data Breach Notification: In the event of a confirmed personal data breach affecting Subscriber data, CheckPass shall notify the Subscriber's designated administrator without undue delay and within seventy-two (72) hours of becoming aware of the breach, providing forensic context and remediation steps in accordance with Section 40 of the NDPA 2023.

10. Commercial Exploitation Prohibition: CheckPass expressly covenants that it shall NEVER sell, lease, monetize, disclose to advertising networks, or train commercial artificial intelligence models on resident profiles, visitor telemetry, or community transaction records.

PART 3 · LEGAL GOVERNANCE & DISPUTE RESOLUTION

11. Limitation of Liability: Neither party shall be liable for indirect, incidental, or consequential damages. CheckPass shall not be liable for perimeter security breaches, criminal trespass, or physical security lapses occurring at the Subscriber's physical gates, as CheckPass is a software platform and not an armed guard force. CheckPass's aggregate liability under this Agreement shall not exceed the total fees paid by the Subscriber in the three (3) months preceding the claim.

12. Governing Law & Arbitration: This Agreement shall be governed by and construed in accordance with the substantive laws of the Federal Republic of Nigeria. Any dispute arising out of or in connection with this Agreement shall first be submitted to mutual executive consultation for twenty-one (21) business days. Failing amicable resolution, the dispute shall be finally settled under the Arbitration and Mediation Act (AMA) 2023 at the Lagos Court of Arbitration (LCA), Lagos, Nigeria.

FOR SHEFFY TECHNOLOGIES LIMITED

Authorized Executive Signatory
Sheffy Technologies Limited (RC 1928471)
Victoria Island / Ikeja, Lagos State, Nigeria

FOR SUBSCRIBING CLIENT / ESTATE BOARD

Chairman / Exco Secretary / Facility Manager
On behalf of Registered Homeowners Association / CDA
Authorized Community Representative

CheckPass® is a registered trademark of Sheffy Technologies Limited (RC 1928471). Certified compliant with the Nigeria Data Protection Act (NDPA) 2023 and NDPC GAID 2025. Contact: legal@checkpass.ng · Data Protection Officer: dpo@checkpass.ng